ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	118th Commission Meeting
DATE:	3 March 2023
TIME:	11:00 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise on action on a case related to suspension – LD & DoI *The Legal Division apprised on a request received to revoke an injunction order related to a case and if not, to freeze the loan account. It was submitted that the request is not recommended for approval given the fact that the injunction order only restricts the property from ownership change, buying and selling or conversion and not collecting the monthly rentals for the loan.*	**The Commission declined the request, as also recommended by the LD and the investigation team.**
2	Apprise on the way forward on the public announcement – LD *Annually, public announcements related to cases cost considerable resources to the government. Hence going forward, it was discussed that where possible the expenditure on announcements needs to be reduced. Besides Section 107 of the ACAB 2011 on publishing a copy of notice in the media on freezing or seizure of immovable properties, it was apprised that there is no other requirement and discontinuing general announcements related to the suspensions would not have any legal implications. Moreover, the ACC sends a copy of such orders to the relevant authorities.* *However, it was noted that the objective of creating public awareness on some important cases would be undermined if such announcements are discontinued in general.*	**In principle, the Commission decided to make public announcements related to freeze orders and where required, rationalize any other announcements based on the nature of the case and the importance of creating public awareness. The decision on publishing notifications in media, besides abiding by Section 107 of the ACAB 2011, was directed to be made by the Investigation Committee Meeting or other relevant decision-making authority/forums.**
3	Update on a case and proposal for updating case information in RBP's system – LD	

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	LD apprised on a civil case forwarded to RBP for investigation by the ACC. Further, in keeping with the existing gap in information sharing between the ACC and RBP related to judgements on cases prosecuted by the ACC on its own, the LD proposed to share all related information with the RBP to be updated in their system for security clearance purposes.	**The Commission directed the Legal Division to share information/judgement related to ACC's own five prosecutions with the RBP to be updated in their system. Further, it was noted that the integration of systems and data of the two institutions will reduce any such gaps in the future.**
4	Update on myACC app – ICTS *As a follow-up of the 117th Commission meeting, ICT apprised that the change in Google's policy has delayed its approval for myACC app registration. As an interim alternate, the ICT presented the option of making myACC app accessible through ACC website. However, the Commission noted that in doing so, the app would be accessible only to the Android users and would also create a burden for the users to download and switch it later with the version available in google store.*	**The Commission decided not to opt for a downloadable version of myACC app. However, directed ICT to continue following up with the consultant and get specific details on which privacy statement of myACC is conflicting with Google's policy to make necessary corrections.**
5	Seek directions on the location of CCTV control room – SS & ICTS *Three options (AFS Office wall, SS Head's Office, Security Officer's Room) to install the CCTV control room presented were discussed.*	**The Commission directed to position CCTV Control Room in the current pantry on the ground floor by making necessary refurbishments including proper ventilation.**
6	Reconstitution of Tender Committee – SS *The SS proposed reconstitution of the Tender Committee in view of most of the members having separated from the ACC.*	**The Commission reconstituted the Tender Committee as follows:** **i) Commissioner A Karma Rinzin (Chairperson);** **ii) Ugyen Penjor, Head SS (member);** **iii) Karma Seldon, Sr. Finance Officer (member);** **iv) A Representative from relevant Dept/RO/Div (member); and** **v) Jigme Lhendup, Procurement Officer (Member Secretary).** **The Commission directed to review and revise the member composition on an annual basis.** **Further, the Commission directed PPD to review all the existing Committees including the Chairperson of Tender and HRC**

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		in consultation with the Commissioners.
7	Regular HR update – HRS *The HRO apprised the following of the 88th HRC meeting:* *a) Regretted Sonam Choden's appeal to change the placement and Director, DoI to counsel and advise.* *b) Decision to issue NOC for Ramesh Kumar Katwal, acting Phuntsholing RD; Thinley Norbu, acting Bumthang RD, and Tsheten Tshering, acting Trashigang RD, to apply for the announced positions.* *c) Regretted Tashi Phuntsho's request for NOC in keeping with the minutes of 50th HRC meeting.* *d) Endorsement on a mutual agreement to exchange placement by Kinley Yangzom, Legal Officer, Trashigang RO and Karma Tenzin, IPO, PD, DoPE given the same educational background.* *e) Submission of Kelzang Dema's appeal to finance her online course fees to the Commission. The Commission discussed that it would not be appropriate to support the request from Justice Sector Project as the project is governed by the RGoB rules and regulations.*	**The Commission noted the decisions.** **With regards to Kelzang Dema's appeal, the applicant was directed to write to the Commission with proper justifications for further review and deliberation.** **The Commission directed PPD to temporarily attach Mitshe Dorji to assist HRS until HRA joins back. Further, HRS was directed to recruit Personal Secretary on Contract who can also be attached to HRS.**
8	Present preliminary findings of 5th NIA – EAD *The preliminary findings were presented and directives on way forward were sought by the EAD on the 5th NIA.*	**The following were decided by the Commission:** **- The categorization of Regional Offices to be clubbed with the respective Ministry for the national report. However, the detailed analysis of the Regional Offices to be included under the respective Ministry's report at a later stage.** **- Similarly, for the Parliamentary Integrity Index (PII), combined scores of the two houses were directed to be generated for the national report while the detailed scores and analysis can be covered in**

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		the agency-specific reports. Further, the PII was directed to be compared with the international and regional Parliamentary counterparts. - **Given the limitations in the composition of clients for the Judiciary services, the Commission directed EAD to see if we need to include some convicted clients.** - **The index is to be based on a floating score given its objective.** - **EAD to plan the dissemination of the national report after the National Council elections.**
9	Update on the ACC's requests to CPIB: attachment of ACC officials to CPIB & CPIB officials' attachment to the ACC – PPD *The PPD presented the proposed programs for the two attachments.*	**The Commission directed PPD to consult DoI and DARe on the specifics of the proposed programs.** **Further, PPD was directed to inform CPIB on the ACC's willingness to cover the delegates' local costs related to meals, accommodation and transportation in view of their support to improve the ACC's investigation, intelligence and forensics systems and processes.**
10	Any other: - *Preparation for the meeting with RAA & OAG at Tsirang*	**The Commission decided to have a preparatory meeting early next week to discuss on RAA referrals.** **PPD was directed to prepare a presentation on the approach, strategies, and way forward of the ACC.**

Commissioner **Commissioner** **Chairperson**

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